

FIRST ENDORSEMENT

Executive Director, Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Nancy Slater, Department Advocate's Office, October 13, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2021-234021, against Detective James Quirk Tax Registry No. 951100. The case was conferenced on September 26, 2023, before Assistant Deputy Commissioner of Trials Jeff S. Adler, who approved the negotiated penalty of Command Discipline A, forfeiture of 3 (THREE) vacation days. Charges and Specifications are dismissed for plea purposes.



Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2021-23401

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, QUIRK	FIRST JAMES	M.I. J	COMMAND WARRANT SECTION
SHIELD NO. 06955	TAX REGISTRY NO. 951100	SOCIAL SECURITY NO.	DATE APPOINTED 07/06/2011	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Detective James Quirk, on or about April 23, 2019, at approximately 0700, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he entered a bedroom of § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Detective James Quirk, on or about April 23, 2019, at approximately 0700, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police Department, in that he searched a bedroom of § 87(2)(b) in Brooklyn without sufficient legal authority.	DISMISSED	
3 . Detective James Quirk, on or about April 23, 2019, at approximately 0700, while assigned to WARRSEC and on duty, in the vicinity of § 87(2)(b) Kings County, abused his authority as a member of the New York City Police	DISMISSED	

DC Brashers
FIRST DEPUTY COMMISSIONER

11/21/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

1/31/24
DATE



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TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
Department, in that he failed to provide § 87(2)(b) with a business card without sufficient legal authority.				

DC Brubaker
FIRST DEPUTY COMMISSIONER

11/21/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Caban
POLICE COMMISSIONER

1/31/24
DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner November 21, 2023. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2021-23401 against Detective James Quirk, Tax No. 951100, with the recommendation that the Charges and Specifications against Detective Quirk be dismissed. It is further recommended that Detective Quirk receive a Schedule "A" Command Discipline and forfeit three (3) vacation days. Assistant Deputy Commissioner, Trials Jeff S. Adler reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**

TIK/jpc


Tania I. Kinsella
FIRST DEPUTY COMMISSIONER

DISAPPROVED


JAN 31 2024
EDWARD A. CABAN
POLICE COMMISSIONER

FOURTH ENDORSEMENT

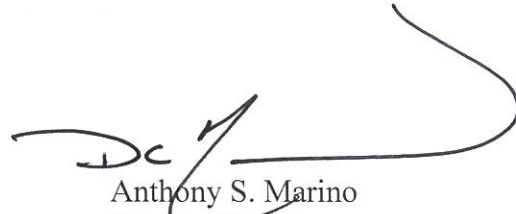
COMMANDING OFFICER, POLICE COMMISSIONER'S OFFICE to First Deputy Commissioner, January 31, 2024. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement regarding Disciplinary Case No. 2021-23401 against Detective James Quirk, Tax No. 951100.

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Detective James Quirk and determined that the actions of Detective Quirk warrant a higher penalty more consistent with the penalties received by other officers involved in the same matter.

The Police Commissioner directs that the charges and specifications in this matter be dismissed and Detective Quirk be issued a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days.

The Commanding Officer, Department Advocate shall ensure that a copy of the fully adjudicated Command Discipline is forwarded to this office expeditiously.

Forwarded for your necessary attention.



Anthony S. Marino
Deputy Chief

AM/ms

FIRST DEPUTY COMM.
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